

KMVTECH EDUCATION**INL1 · Module 3****International and municipal law**

Lesson: How treaties enter Uganda

Student Lesson Notes

Study with the online lessons. Prefer primary sources (Constitution, statutes, treaties, cases). © KMVTECH Education · September 2026.

1. CORE IDEA

The relationship between international and municipal law is dualist in form for many Commonwealth States, including Uganda: treaties do not automatically become domestic law. Transformation or incorporation is usually required.

Article 123 of the Constitution of Uganda, 1995 governs executive treaty-making power and parliamentary role. Courts may still use international law as an interpretive aid even before full domestication.

Customary international law may be received as part of the common law where not inconsistent with statute or the Constitution.

- Conflict rules: Constitution is supreme; clear statutes prevail over unincorporated treaties; courts strive for harmony where possible.

2. DETAILED RULES AND APPLICATION

Example: the African Charter on Human and Peoples' Rights influences constitutional interpretation in Uganda even where specific implementing legislation is incomplete.

Vienna Convention on the Law of Treaties rules on interpretation (ordinary meaning, context, object and purpose) guide both international and domestic courts reading treaty text.

Always ask: has the rule been domesticated? If not, can it still influence interpretation or bind the executive externally?

3. UGANDA / PRACTICE, METHOD AND TRAPS

Practice in Ugandan courts shows increasing willingness to cite international instruments in human rights and environmental cases. Executive action abroad remains constrained by international obligations even when domestic effect is limited.

Exam trap: asserting that every ratified treaty is automatically enforceable in Ugandan courts without checking for implementing legislation or interpretive use.

Method: (1) identify the international rule, (2) check constitutional and statutory reception, (3) argue interpretive value if not fully domesticated, (4) note external State responsibility.

This lesson is the bridge between pure international law and every domestic application that follows.

SELF-TEST QUESTIONS

Attempt these before the platform practice quiz.

1. Is Uganda dualist or monist in form?
2. What does Article 123 regulate?
3. Can custom form part of Ugandan law?
4. How may an unincorporated treaty still be useful in court?
5. What prevails in a clear conflict between statute and treaty?
6. Why do courts strive for harmony?

Exam tip: Reception analysis before domestic enforceability claims.

CHECKLIST BEFORE YOU LEAVE THIS LESSON

- I can state the main instrument(s) or Cap number.
- I can explain the core rule in my own words.
- I can apply the rule to a short Uganda / regional fact pattern.
- I know the common exam trap for this topic.
- I know how this lesson links to the next module.

Next step: Complete the online practice quiz for this lesson, then continue on the platform.